

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF MOLCHANOV AND OTHERS v. RUSSIA

(Applications nos. 43487/21 and 27 others –
see appended list)

JUDGMENT

STRASBOURG

18 January 2024

This judgment is final but it may be subject to editorial revision.



In the case of Molchanov and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*,

no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

13. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 12 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine the remaining complaints raised by the applicants;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Péter Paczolay President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	43487/21 11/08/2021	**Pavel Valeryevich MOLCHANOV** 1976	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. on 31/01/2021 until 5.30 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - Right of appeal against criminal conviction/sentence - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	43490/21 11/08/2021	**Vladimir Vladimirovich ORLOV** 1995	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2.2 § 1 of CAO	detention for 12 days	St Petersburg City Court 11/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.27 p.m. on 31/01/2021 until 12.20 p.m. on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - Right of appeal against criminal conviction/sentence - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	49077/21 28/09/2021	**Olga Aleksandrovna VAREGINA** 1986	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Pyatigorsk 31/01/2021	article 20.2.2 § 1 of CAO	detention for 1 day	Stavropol Regional Court 31/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.20 p.m. on 31/01/2021 to 4.30 p.m. on 01/02/2021.	5,000
4.	49082/21 28/09/2021	**Yuriy Nikolayevich TSEPIN** 1969	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Pskov 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Pskov Regional Court 05/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	49108/21 28/09/2021	**Yelena Vladimirovna LUSHINA** 1993	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	49184/21 30/09/2021	**Mikhail Gennadyevich YEGOROCHKIN** 2000	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.10 p.m. on 31/01/2021 until 3.40 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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7.	49193/21 30/09/2021	**Yekaterina Aleksandrovna VELIKAYA** 1987	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Penza 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 12,000	Penza Regional Court 01/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 8.10 a.m. until 1.30 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	49203/21 30/09/2021	**Aleksandr Ivanovich SVITLIK** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	49205/21 28/09/2021	**Nikita Ruslanovich MIKHONIN** 1997	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 20/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.30 p.m. on 31/01/2021 until 2.30 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	49219/21 22/09/2021	**Aleksandr Dmitriyevich RAZDOBURDIN** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2 § 2 of CAO	detention for 4 days	St Petersburg City Court 25/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
11.	49220/21 30/09/2021	**Nadezhda Sergeyevna NEZNAYEVA** 1999	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.55 p.m. on 02/02/2021 until 4.00 p.m. on 03/02/2021;	5,000

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				02/02/2021				Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
12.	49233/21 22/09/2021	**Maksim Eduardovich BORODULIN** 1992	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2 § 2 of CAO	fine of RUB 10,000	St Petersburg City Court 25/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.00 p.m. on 31/01/2021 to 1.00 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
13.	49237/21 30/09/2021	**Albina Vladislavovna PUKHOVA** 1965	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 12/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from noon until 7.20 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
14.	49243/21 30/09/2021	**Olga Yuruevna KARAVASHKOVA** 2002	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.10 p.m. on 23/01/2021 until 12.30 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
15.	49301/21 22/09/2021	**Sergey Aleksandrovich BOBRIK** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 26/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.30 p.m. on 31/01/2021 until 11.00 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
16.	49434/21 22/09/2021	**Aleksey Nikolayevich DUNTSOV** 1987	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.10 p.m. on 31/01/2021 until 4.45 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	49443/21 22/09/2021	**Ivan Fedorovich FEDTSOV** 2002	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.10 p.m. until 7.00 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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18.	49466/21 22/09/2021	**Yevgeniy Vladimirovich PEREVERZOV** 1977	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Taganrog 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Rostov Regional Court 23/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	49473/21 22/09/2021	**Mariya Vladimirovna DANILINA** 1996	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 26/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.15 p.m. on 02/02/2021 until 9.20 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	49474/21 22/09/2021	**Andrey Ivanovich PINDAK** 1990	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.10 a.m. on 03/02/2021 until 12.15 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
21.	49504/21 22/09/2021	**Polina Valentinovna DUDINA** 1999	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.05 a.m. until 6.45 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
22.	49533/21 22/09/2021	**Pavel Alekseyevich LINKOV** 1986	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 du CIA	fine of RUB 15,000	Moscow City Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.40 a.m. on 02/02/2021 until 6.00 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	49542/21 22/09/2021	**Yuliya Vladimirovna FILIMONOVA**	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.45 p.m. on 02/02/2021 until 5.30 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	49552/21 22/09/2021	**Maksim Viktorovich PETREYEV** 1983	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 26/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.20 p.m. on 31/01/2021 until 2.00 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
25.	49591/21 22/09/2021	**Tatyana Yevgenyevna IZOTOVA** 1986	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 15,000	St Petersburg City Court 23/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.45 p.m. until 9.00 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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26.	49599/21 22/09/2021	**Vladislav Olegovich NARUSHEV** 1996	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Samara 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 25/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 1.30 p.m. until 6.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
27.	49754/21 16/09/2021	**Maksim Anatolyevich KHLAMOV** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.25 p.m. until 9.56 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
28.	59537/21 17/11/2021	**Roman Vladimirovich PYTEL** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 17/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.45 p.m. on 02/02/2021 until 5.00 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.